

1 15A NCAC 12H .0402 is proposed for re-adoption as follows:

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3 **15A NCAC 12H .0402 MANAGEMENT PRINCIPLES**

4 The following management principles shall apply ~~for~~ to all dedicated preserves, unless exceptions are expressly
5 provided in the Articles of ~~dedication~~. dedication:

- 6 (1) the essential natural character of the property shall be ~~maintained~~. maintained;
- 7 (2) improvements, including building of all types, trails, parking areas, vehicular roadways, signs, fences,
8 steps, and bridges, shall only be constructed when necessary for the security, safety, information, ~~or~~
9 access of the public or ~~and those improvements necessary~~ for the maintenance and management of
10 the ~~preserve~~. preserve;
- 11 (3) destruction of flora and fauna shall not be permitted except for the purpose of preserving ~~or~~
12 ~~regenerating~~ species and Natural communities of concern, or for the purpose of establishing and
13 maintaining public access facilities. In case of either exception, manipulation of the flora and fauna
14 shall be consistent and compatible with the ecological ~~natural~~ character of the area and shall not be
15 ~~seriously~~ damaging or detrimental to the ~~natural quality of the preserve~~. preserve;
- 16 (4) no motorized vehicles shall be permitted on the dedicated property other than those utilized by the
17 owner or the owner's agents in management and protection of the property or used by the general
18 public for ingress and egress to the property in compliance with the management plan for the
19 ~~preserve~~. preserve;
- 20 (5) no signs, billboards, or other advertising of any kind shall be erected, with the exception ~~for~~ of
21 informational and directional signs related to the designation of the area as a preserve and public
22 access to the ~~preserve~~. preserve;
- 23 (6) no change shall be made in the ~~natural~~ topography of the preserve except for those minimal alterations
24 ~~which that~~ may be necessary to provide on-foot access to the public for visitation or observation; ~~this~~
25 ~~shall be done~~ if the change is ~~wholly~~ compatible and consistent with the character of the property,
26 and where no detrimental effect ~~shall result~~. will result;
- 27 (7) no activity shall be allowed ~~which might that may~~ pollute any stream or body of water in the ~~preserve~~.
28 preserve;
- 29 (8) no stream in the preserve shall be dammed, impounded, or have its course ~~altered~~. altered as a result
30 of human activity;
- 31 (9) visitor activities shall be controlled to prevent significant disturbance and environmental degradation
32 ~~to of the preserve~~. preserve;
- 33 (10) prescribed fire and necessary fire lines may be used as management tools ~~in such areas or situations~~
34 ~~where needed~~ to maintain or protect the natural community ~~type~~. type;
- 35 (11) the cutting or removal of trees, dead or alive, ~~is~~ shall be prohibited, except that which is expressly
36 permitted by an approved management plan or is necessary for public ~~safety~~. safety;
- 37 (12) persons wishing to engage in scientific research or collection of natural materials within a preserve

shall first secure written permission from the owner and the management ~~agency.~~ agency;

(13) when necessary and feasible, boundaries of a preserve shall be made clearly evident by placing markers or boundary signs at corners and ~~or other strategic locations.~~ locations;

(14) control of exotic (non-native) species may be undertaken where eradication ~~can~~ may be accomplished without undue disturbance ~~of the area's natural conditions~~ conditions; ~~or without requiring relatively long periods of time for natural restoration; and~~

(15) no other acts or uses ~~which that~~ are detrimental to the maintenance of the property in its natural condition shall be allowed including ~~but not limited to~~ disturbance of the soil, mining, commercial or industrial uses, timber harvesting, ditching and draining, or depositing waste ~~materials.~~ materials;

*History Note: Authority G.S. ~~113A-164; 113A-164.4~~ 113A-164.7; 143B-135.256; 143B-135.262;
Eff. January 1, ~~1986;~~ 1986;
Amended Eff. December 31, 2016.*